

Purchase Order

DELIVERY/SHIP TO:

PT. FASHION MARKETPLACE INDONESIA
Capital Place Lantai 26
JL. Jend. Gatot Subroto Kav. 18
Kuningan Barat, Mampang Prapatan
Indonesia 12710

Billing Address:
PT. Fashion Marketplace Indonesia
Capital Place Lantai 26
Jl. Jend. Gatot Subroto Kav. 18
Kuningan Barat, Mampang Prapatan
12710 Jakarta Selatan, DKI Jakarta
Indonesia
Company Reg. No.: 5473.2013
Tax ID No: 03.344.376.3-015.000

PO No: 5100033716
Date: 26.11.2024
Incoterm: /
Payment Term: V015 - 15 days Due net

VENDOR

Riesta Tiara Pratiwi
Perum Permata Bekasi li, Blok N/4, Duren Jaya,
Kota Bekasi
Indonesia 17111
Email/PIC: /

<i>Zalora Use:</i>	
PR No	:1000032989
Currency	: IDR

NO.	Material Number	Material Description	Expected Delivery Date	QTY	UoM	Unit Price (before discount)	Unit Price (after Discount)	GST / VAT Type	Amount
10		Creative Freelancer - Nov 2024	29.11.2024	1.00	EA	5,641,026	5,641,026	0%	5,641,026

NOTE: Please ensure that Purchase Order # is quoted on the invoice and email all invoices directly to procurement@id.zalora.com and cc billing@id.zalora.com for payment processing.	Total Amount Excluding GST / VAT	5,641,026
	Less: Discount	(0)
	Total amount after discount	5,641,026
	GST / VAT Total	0
	Total Amount Including GST / VAT	5,641,026

REMARKS:

Purchase Orders Terms & Conditions

I. Purchase Orders

A. These Terms & Conditions shall apply to all Purchase Orders issued by ZALORA for supply of goods and/or services. All Purchase Orders shall be in writing placed in written form, and no additional condition(s) or amendments of Purchase shall apply except as expressly informed in writing by ZALORA to the Supplier.

B. These Terms & Conditions shall apply to the exclusion of any and all other terms and conditions Supplier seeks to impose or incorporate (including any terms which Supplier purports to apply under any confirmation of order, specification or other document) or which are implied by trade, custom, practice or in the course of dealing.

II. Supply of Goods

A. Supplier Obligations

The Supplier shall:

1. comply with all applicable statutory and regulatory requirements relating to manufacture, labelling, packaging, storage, handling, and delivery of the goods;
2. ensure that at all times it has and maintains all the licences, permissions, authorisations, consents and permits that it needs to carry out its obligations under the Purchase Order in respect of the goods; and
3. allow ZALORA to inspect and test the goods at any time before delivery. The Supplier shall remain fully responsible for the goods despite any such inspection or testing, and any such inspection or testing shall not reduce or otherwise affect the Supplier's obligations under this Purchase Order.

B. Warranties

The Supplier expressly warrants that all goods supplied in relation to this Purchase Order:

1. shall comply with the specifications, drawings, or description of samples furnished;
2. shall be of good quality, material, and workmanship;
3. shall be free from defects and fit for the purpose intended;
4. shall be free from any encumbrances and that Supplier has good title over the goods;
5. do not and will not infringe any rights of third parties (including any third parties' intellectual property rights); and
6. have valid and subsisting warranties, if applicable.

Supplier further expressly warrants that it has the right, power and authority to enter into and perform its obligations in accordance with this Purchase Order.

C. Delivery and Packaging

1. Supplier is required to deliver to the delivery location in accordance with the delivery dates and timing, as applicable, as specified and communicated by ZALORA.
2. Supplier shall properly preserve, pack, package and handle the goods to protect the goods from loss or damage, to enable them to reach ZALORA in good condition.
3. Title and risk in the goods shall pass to ZALORA on completion of the delivery.

III. Supply of Services

A. Supplier's obligations

1. The Supplier shall meet any performance dates and timings for the services if specified in the Purchase Order or that ZALORA notifies to the Supplier. Time is of the essence in relation to the performance of the services.
2. In providing the services, the Supplier shall cooperate with ZALORA in all matters relating to the services, and comply with all instructions of ZALORA.
3. The Supplier shall ensure that at all times it has and maintains all the licences, permissions, authorisations, consents and permits that it needs to carry out its obligations under the Purchase Order in respect of the services.
4. The Supplier shall at all times observe all health and safety rules and regulations and any other security requirements that apply at any of ZALORA's premises.

B. Warranties

The Supplier expressly warrants that it:

1. shall perform the services with the best care, skill and diligence in accordance with best practice in the Supplier's industry, profession or trade;
2. shall use personnel who are suitably skilled and experienced to perform tasks assigned to them and in sufficient number to ensure that the Supplier's obligations are fulfilled in accordance with the Purchase Order;
3. shall ensure that the services will conform with all the specifications, standards and descriptions set out by ZALORA, and that the Deliverables shall be fit for any purpose that ZALORA expressly or impliedly makes known to the Supplier;

4. shall provide all equipment, tools and such other items as are required to provide the services;
5. shall use the best quality goods, materials, standards and techniques, and shall ensure that the deliverables and all goods and materials supplied and used in the services or transferred to ZALORA will be free from defects in workmanship, installation and design;
6. has the right, power and authority to enter into and perform its obligations in accordance with this Purchase Order; and
7. does not and will not infringe any rights of third parties (including any third parties' intellectual property rights).

C. Ownership

All works, materials, content and deliverables created pursuant to the services rendered by the Supplier shall be the exclusive property of ZALORA and Supplier agrees that all intellectual property rights in any of the works, materials, content and deliverables are owned by ZALORA.

IV. Remedies

A. In the event the goods and/or services received by ZALORA are (a) not delivered on the specified delivery date or (b) do not comply with the obligations and warranties set out in Clause II and III above, ZALORA may at its sole discretion exercise any one or more of the following remedies, without prior notice to Supplier and limiting any of its other rights or remedies, and whether or not it has accepted the goods and/or services:

- a. to terminate this Purchase Order;
- b. to reject the goods and/or services (in whole or in part) and return them to the Supplier at Supplier's own risk and expense;
- c. to require Supplier to repair or replace the rejected goods and/or services, or to provide a full refund of the relevant losses, costs and expenses incurred by ZALORA;
- d. to refuse to accept any subsequent delivery of the goods/services which Supplier attempts to make;
- e. to recover from Supplier any losses, costs, and expenses incurred by ZALORA in obtaining substitute goods and/or services from a third party; and/or
- f. to claim damages for any other costs, losses, or expenses incurred by ZALORA which are in any way attributable to Supplier's failure to carry out its obligations under this Purchase Order.

B. In the event of a delay in delivery of the goods or in the performance of services, ZALORA is entitled to claim a penalty of 0.5% of the value of the goods or services (including any and all applicable taxes, duties and levies) for each working day of delayed delivery, up to a maximum of ten percent (10%) of the value of the goods or services.

V. Risk of Loss/Damage

Risk, damage and loss of goods or deliverables pursuant to a service shall be the sole responsibility of the Supplier until such goods or deliverables are delivered to ZALORA. ZALORA's signature on any delivery note, or any other confirmation or documentation, in connection with receipt of the goods and/or services, is evidence only of the quantity/types of goods or services received. In particular, it should not be considered as evidence that the correct quantity has been received or that the goods or deliverables received are in good condition.

VI. Prices, Invoices and Payment

A. Prices stated in the Purchase Order shall be deemed binding. Price shall be inclusive of any and all taxes, charges and levies, whether paid or payable, where applicable. Unless expressly agreed otherwise, the Price shall also be inclusive of all costs associated with packaging, insurance and carriage of the Products, and any and all taxes, charges and levies, whether paid or payable, in connection with Supplier's delivery of the goods to the delivery location or Supplier's performance of the services.

B. Unless otherwise specified in the Purchase Order, ZALORA shall pay Supplier for the price as set forth in the Purchase Order, sixty (60) days following the later of:

1. The delivery date;
2. the date of ZALORA's acceptance of all the goods and/or services; or
3. ZALORA's receipt of a valid (tax) invoice, which is properly prepared.

C. A properly prepared invoice must include the Purchase Order number.

D. Payment will be made against the currency type specified on the Purchase Order. ZALORA is entitled to set off against any sums due to the Supplier from ZALORA.

E. Unless otherwise stated, each Party is responsible for its own taxes, charges, and levies in relation to transaction(s) conducted by it under this Purchase Order.

VII. Termination

A. In addition to the termination rights set out herein, ZALORA shall be entitled to terminate this Purchase Order immediately upon written notice in any of the following cases:

1. in the event of any breach of the terms of this Purchase Order; or
2. if Supplier becomes insolvent or bankrupt or has a receiving order made against it or makes any general composition with its creditors; or
3. where there is any negligent performance, fraud or wilful misconduct by Supplier.

B. ZALORA shall also be entitled to terminate this Purchase Order for any reason upon seven (7) days' prior written notice.

VIII. Force Majeure

Any delay or failure in the performance by either party of its obligations hereunder shall be excused if and to the extent caused by the occurrence of a Force Majeure. For purposes of these Terms and Conditions, Force Majeure shall mean a cause or event that is not reasonably foreseeable or otherwise caused by or under the control of the party claiming Force Majeure, including acts of God, fires, floods, explosions, riots, wars, hurricane, sabotage terrorism, vandalism, accident, restraint of government, epidemic or pandemic, governmental acts, injunctions, labour strikes. Either Party may immediately terminate this Purchase Order by providing written notice if the effects of a Force Majeure Event extends beyond thirty (30) days.

IX. Indemnity

Supplier shall indemnify and hold harmless ZALORA from and against any and all liabilities, costs (including court costs and attorney' fees), penalties, fines, damages, and losses, suffered or incurred in connection with: (a) any claim of actual or alleged infringement of a third party's intellectual property rights (b) negligent performance, fraud or wilful misconduct of Supplier or its representatives or (c) failure to comply with applicable laws.

X. Liability

ZALORA shall not be liable to the Supplier in contract, tort, negligence, breach of statutory duty or otherwise for any loss, damage, costs or expenses of any nature whatsoever incurred or suffered by the Supplier (a) of an indirect or consequential nature or (b) which consists of any economic loss or other loss of turnover, profits, business of goodwill. The total aggregate liability of ZALORA to the Supplier however arising under this Purchase Order shall not exceed in aggregate the total value of the purchase order related to such claims.

XI. Compliance

A. Supplier shall ensure that all goods/services comply with the local laws (including consumer protection laws), legislation, ruling and ordinances of the country of sale.

B. Supplier shall comply with (a) all applicable laws, statutes, regulations and codes relating to anti-bribery and anti-corruption; and (b) ZALORA's Supplier Code of Conduct as set out at <https://www.zalora.com.my/code-of-conduct/>, which is hereby incorporated into this Purchase Order by reference.

XII. Applicable Law

Any disputes or claims arising between the parties, which are in relation to this Purchase Order shall be construed and governed in accordance with the laws of the relevant jurisdiction where the ZALORA purchasing entity is registered without giving effect to such jurisdiction's conflict of laws principles. Parties further agree that the United Nations Convention on Contracts for the International Sale of Goods does not apply to this Purchase Order. If there is a conflict between these Purchase Order Terms and Conditions and a formal written contract executed by the Parties for the same goods and services covered by this Purchase Order, the formal written contract shall prevail. If there is a conflict between these Purchase Order Terms and Conditions and a cost estimate/quotation/invoice issued by the Supplier, these PO Terms and Conditions shall prevail. The Parties shall try to resolve any dispute arising out of or related to this Purchase Order by negotiation in good faith within thirty (30) days of a notice of a dispute from either party, failing which either Party may refer the dispute to exclusive jurisdiction of the relevant courts of the country where the ZALORA purchasing entity is registered.

INVOICE #13

RIESTA TIARA P.

Graphic Designer

CLIENT INFORMATION

Zalora ID

PT Fashion Marketplace Indonesia

DATE

November, 2024

JOB DESCRIPTION

Freelance Graphic Designer

PRICE

IDR5.641.026

QTY.

1 Month

TOTAL

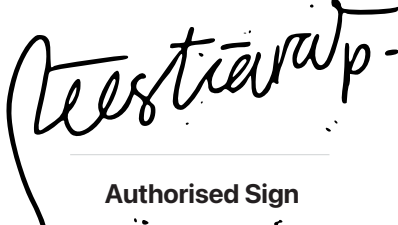
IDR5.641.026

Payment Info

Account Number: 5271 2603 43
A/N: Riesta Tiara Pratiwi
Bank Central Asia (BCA)

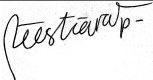
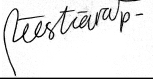
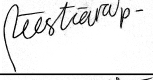
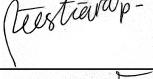
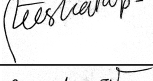
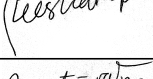
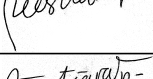
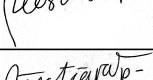
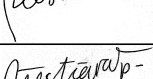
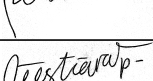
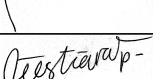
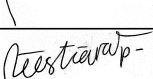
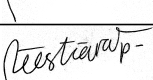
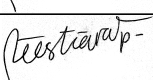
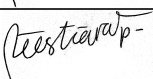
Billed to

PT Fashion Marketplace Indonesia
Capital Place Lantai 26
Jl. Jend. Gatot Subroto Kav. 18
Kuningan Barat, Mampang Prapatan
Jakarta Selatan, DKI Jakarta


Authorized Sign

PT. Fashion Marketplace Indonesia
Capital Place Building, 26th Floor
Jalan Jendral Gatot Subroto Kav. 18
Mampang Prapatan, Jakarta Selatan, 12710

Vendor's Name:	RIESTA TIARA PRATIWI	Bank:	BANK CENTRAL ASIA (BCA)
Department:	CREATIVE MARKETING	Account No.:	5271260343
Supervisor or Manager's Name:	R. SITI HUSNUL CH.	Branch:	BANK BCA KCP BINA NUSANTARA

No.	Date	Start Time	End Time	Total Working Hours	Freelance's Signature	Supervisor/Manager's Signature
1	1-Nov-24	9	6	9		
2	4-Nov-24	9	6	9		
3	5-Nov-24	9	6	9		
4	6-Nov-24	9	6	9		
5	7-Nov-24	9	6	9		
6	8-Nov-24	9	6	9		
7	11-Nov-24	9	6	9		
8	12-Nov-24	9	6	9		
9	13-Nov-24	9	6	9		
11	14-Nov-24	9	6	9		
12	15-Nov-24	9	6	9		
13	18-Nov-24	9	6	9		
14	19-Nov-24	9	6	9		
15	20-Nov-24	9	6	9		
16	21-Nov-24	9	6	9		
17	22-Nov-24	9	6	9		
18	25-Nov-24	9	6	9		

19	26-Nov-24	9	6	9	testiarp-	h
20	27-Nov-24	9	6	9	testiarp-	h
21	28-Nov-24	9	6	9	testiarp-	h
22	29-Nov-24	9	6	9	testiarp-	h

Declaration - FREELANCE

I certify that all the details in this attendance have been truly actual and are in accordance with the official working hours as stated in Company Policy.

Vendor's Signature	testiarp-				
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Declaration - Manager, Head of Department, Director, CEO or Approval Nominee

I have agreed with the details in this attendance and decided to approve them based on the Company Regulations and Policies.

Signature & Name	R. Siti Husnul Ch.	h
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HR & FINANCE DEPT. USE ONLY

	Day	Salary/Hour	Total
Total Full Day	23		Rp5.641.026
Total Half Day			
		Net Salary	
		PPh 21	
		Total Salary	

HR Acknowledgement

Finance Acknowledgement

Acknowledged by	Acknowledged by
Date (MM/DD/YYYY)	Date (MM/DD/YYYY)